

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Shelton	Team: Squad #11	CCRB Case #: 201909287	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/22/2019 7:16 PM, Tuesday, 10/22/2019 7:52 PM	Location of Incident: the vicinity of 501 Gateway Drive the 75th Precinct stationhouse	18 Mo. SOL 12/7/2021	Precinct: 75		
Date/Time CV Reported Thu, 10/24/2019 12:45 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 10/24/2019 12:45 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Craig Macy	10005	930617	075 PCT
2. SGT Charles Barhold	01293	947981	075 PCT
3. POM James Bergami	12732	939915	075 PCT
4. POM Brian Costello	21884	950242	075 PCT
5. Officers			
6. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . SGT Charles Barhold	Discourtesy: In the vicinity of 501 Gateway Drive in Brooklyn, Sergeant Charles Barhold spoke discourteously to § 87(2)(b)	A . Exonerated
B . POM James Bergami	Discourtesy: In the vicinity of 501 Gateway Drive in Brooklyn, Police Officer James Bergami spoke discourteously to § 87(2)(b)	B . Unfounded
C . POM James Bergami	Abuse: In the vicinity of 501 Gateway Drive in Brooklyn, Police Officer James Bergami threatened § 87(2)(b) with the use of force.	C . Unfounded
D . An officer	Discourtesy: In the vicinity of 501 Gateway Drive in Brooklyn, an officer spoke discourteously to § 87(2)(b)	D . Officer(s) Unidentified
E . SGT Charles Barhold	Abuse: In the vicinity of 501 Gateway Drive in Brooklyn, Sergeant Charles Barhold damaged § 87(2)(b) property.	E . Exonerated
F . POM James Bergami	Abuse: In the vicinity of 501 Gateway Drive in Brooklyn, Police Officer James Bergami damaged § 87(2)(b) property.	F . Exonerated
G . SGT Charles Barhold	Discourtesy: In the vicinity of 501 Gateway Drive in Brooklyn, Sergeant Charles Barhold spoke discourteously to § 87(2)(b)	G . Substantiated
H . Officers	Force: In the vicinity of 501 Gateway Drive in Brooklyn, officers used physical force against § 87(2)(b)	H . Officer(s) Unidentified
I . POM Brian Costello	Force: In the vicinity of 501 Gateway Drive in Brooklyn, Police Officer Brian Costello used physical force against § 87(2)(b)	I . Exonerated

Officer(s)	Allegation	Investigator Recommendation
J . SGT Charles Barhold	Force: In the vicinity of 501 Gateway Drive in Brooklyn, Sergeant Charles Barhold used physical force against § 87(2)(b)	J . Exonerated
K . POM James Bergami	Force: In the vicinity of 501 Gateway Drive in Brooklyn, Police Officer James Bergami used physical force against § 87(2)(b)	K . Exonerated
L . POM Craig Macy	Force: In the vicinity of 501 Gateway Drive in Brooklyn, Police Officer Craig Macy used physical force against § 87(2)(b)	L . Exonerated
M . SGT Charles Barhold	Off. Language: In the vicinity of 501 Gateway Drive in Brooklyn, Sergeant Charles Barhold made remarks to § 87(2)(b) based upon gender.	M . Unfounded
N . An officer	Off. Language: In the vicinity of 501 Gateway Drive in Brooklyn, an officer made remarks to § 87(2)(b) based upon race.	N . Unfounded
O . SGT Charles Barhold	Off. Language: In the vicinity of 501 Gateway Drive in Brooklyn, Sergeant Charles Barhold made remarks to § 87(2)(b) based upon a mental disability.	O . Substantiated
P . POM Craig Macy	Off. Language: At the 75th Precinct stationhouse, Police Officer Craig Macy made remarks to § 87(2)(b) based upon gender.	P . Unfounded
Q . POM Craig Macy	Discourtesy: At the 75th Precinct stationhouse, Police Officer Craig Macy spoke discourteously to § 87(2)(b)	Q . Unfounded

Case Summary

On October 24, 2019, § 87(2)(b) filed the following complaint with the CCRB over the phone. A duplicate complaint was filed with IAB by § 87(2)(b) under log § 87(2)(b).

On October 22, 2019, at approximately 7:16 p.m., § 87(2)(b) was the subject of a vehicle stop initiated by New York State Park Police Officer Dylan Pitt in the vicinity of 501 Gateway Drive in Brooklyn. PO Craig Macy, PO Brian Costello, Sgt. Charles Barhold, and PO James Bergami of the 75th Precinct, assisted PO Pitt due to non-compliance by § 87(2)(b). In ordering § 87(2)(b) out of the vehicle, Sgt. Barhold stated, “Get out of the fucking car now,” and variations of, “Get the fuck out.” § 87(2)(b) alleged that PO Bergami told him to, “Open the fucking window... If you don’t open the fucking car door, I’m going to beat your fucking ass... I asked you to open the fucking door,” and that an unidentified officer told him to, “Open the fucking door,” as Sgt. Barhold and PO Bergami broke the front two windows of the vehicle. Once § 87(2)(b) exited, Sgt. Barhold ordered him to, “Get the fuck on the ground, “get the fuck down,” and to give his “fucking hands” (**Allegation A: Discourtesy, exonerated**) (**Allegation B: Discourtesy, unfounded**) (**Allegation C: Abuse of Authority, unfounded**). (**Allegation D: Discourtesy, officer unidentified**) (**Allegations E and F: Abuse of Authority, exonerated**). As § 87(2)(b) was removed from the vehicle and handcuffed, Sgt. Barhold told him he is a “stupid piece of shit,” a “fucking [inaudible],” “Fuck you, you piece of shit,” a “piece of shit” a third time, “Shut the fuck up,” “Get the fuck up,” and to “shut the fuck up, you fucking...” (**Allegation G: Discourtesy, substantiated**). § 87(2)(b) alleged that multiple unidentified officers punched his head and torso (**Allegation H: Force, officers unidentified**). All four 75th Precinct officers assisted in taking § 87(2)(b) to ground and handcuffing him (**Allegations I to L: Force, exonerated**). During the handcuffing, § 87(2)(b) alleged that Sgt. Barhold called him a “pussy” and that either Sgt. Barhold or PO Bergami called him a “nigger” (**Allegations M and N: Offensive Language, unfounded**). Sgt. Barhold called § 87(2)(b) a “retard” (**Allegation O: Offensive Language, substantiated**). § 87(2)(b) was transported to the 75th Precinct stationhouse.

At the stationhouse, PO Macy allegedly told § 87(2)(b) “Stop being a pussy now. You’re crying for what? Shut the fuck up” (**Allegation P: Offensive Language, unfounded**) (**Allegation Q: Discourtesy, unfounded**).

§ 87(2)(b) was arrested by Park PO Pitt during the incident which was entered into NYPD’s online booking system and was charged with criminal possession of a controlled substance in the third degree with intent to sell, possession of a forged instrument in the second degree, resisting arrest, obstructing governmental administration (OGA) in the second degree, criminal possession of a controlled substance in the seventh degree, aggravated unlicensed operation of a vehicle in the third degree, unlawful possession of marijuana in the second degree, operating a motor vehicle without a license, operating an unregistered vehicle, and failure to keep right in a two-lane road (BR 01).

An investigation by the Patrol Borough Brooklyn North Investigations Unit was conducted into the allegations of excessive force by all four officers in which all four allegations were exonerated (BR 26).

Video evidence was obtained from § 87(2)(b) cellphone (BR 02-03) and the NYPD’s Legal Department which provided footage from the body-worn cameras (BWC) assigned to PO Macy, Sgt. Barhold, and PO Bergami (BR 04-07).

Findings and Recommendations

Allegation A – Discourtesy: In the vicinity of 501 Gateway Drive in Brooklyn, Sergeant Charles Barhold spoke discourteously to § 87(2)(b)

Allegation B- Discourtesy: In the vicinity of 501 Gateway Drive in Brooklyn, Police Officer James Bergami spoke discourteously to § 87(2)(b)

Allegation C – Abuse of Authority: In the vicinity of 501 Gateway Drive in Brooklyn, Police Officer James Bergami threatened § 87(2)(b) with the use of force.

Allegation D – Discourtesy: In the vicinity of 501 Gateway Drive in Brooklyn, an officer spoke discourteously to § 87(2)(b)

Footage from Sgt. Barhold's BWC depicts this allegation (BR 05). The durational timestamp will be referenced. At 0:12, after Sgt. Barhold orders § 87(2)(b) out of his vehicle, he tells § 87(2)(b) "Let's go, get out of the fucking car now." At 0:52, after officers tell § 87(2)(b) at least four more times to exit the vehicle and Sgt. Barhold breaks the passenger window of § 87(2)(b) vehicle, he tells § 87(2)(b) "Get the fuck out of the car now. Get the fuck out. Get out of the car." At 1:03, § 87(2)(b) yells that he has glass in his face. Sgt. Barhold, as he continuously orders him out of the car, responds, "Good. Get the fuck out." § 87(2)(b) repeatedly yells, "Help," as Sgt. Barhold repeats twice more, "Get the fuck out." At 1:11, Sgt. Barhold points his taser at § 87(2)(b) and states, "You're going to get tased, get out." § 87(2)(b) states, "My hands are in the front. My hands are right here." Sgt. Barhold repeats for him to get out or he is "going to get it more." At 1:23, Sgt. Barhold tells other officers, "Get him out... He's under... Get him the fuck out." At 1:35, Sgt. Barhold walks to the driver side door of the vehicle and tells § 87(2)(b) as he physical removes him from the vehicle, "Get the fuck out of the car." At 1:41, Sgt. Barhold tells § 87(2)(b) again, "Get the fuck out." At 1:48, as officers struggle with § 87(2)(b) standing at the side of the vehicle, Sgt. Barhold states, "Get the fuck on the ground. Get the fuck down." From 1:56 to 2:01, as officers struggle with § 87(2)(b) on the ground, Sgt. Barhold tells § 87(2)(b) "Give me your fucking hands." The same sequence of discourteous statements is also partially depicted in PO Macy's BWC footage from 17:46 to 19:47 (BR 04). The investigation identified no discourteous statements against § 87(2)(b) by PO Bergami in the exhaustive video evidence available.

§ 87(2)(b) was initially pulled over by New York State Park Police Officer Dylan Pitt who told him he had committed traffic violations, including crossing a double yellow line and not wearing a seatbelt (BR 08). § 87(2)(b) denied PO Pitt's claim and refused to provide him with his driver's license and vehicle registration. § 87(2)(b) only provided Park PO Pitt a Certificate of Title. After approximately 10 minutes, NYS Parks PO Pitt returned to § 87(2)(b) and asked again for driver's license and vehicle registration. § 87(2)(b) refused, and Park PO Pitt requested NYPD assistance. Seven NYPD officers in four vehicles arrived on scene. PO Bergami approached the driver's window and Sgt. Barhold approached the front passenger window. Sgt. Barhold tapped on the window and told § 87(2)(b) to open it. § 87(2)(b) refused, and Sgt. Barhold responded, "If you don't open this fucking window, I'm going to break it." § 87(2)(b) again refused. PO Bergami tapped on the driver's window and stated, "Open the fucking window... If you don't open the fucking car door, I'm going to beat your fucking ass," Another officer, whom § 87(2)(b) described as a white male wearing a uniform with a white shirt, also told him to, "Open the fucking door." While he was being arrested, PO Bergami told him, "I asked you to open the fucking door."

NYS Parks PO Pitt provided vague testimony about stopping § 87(2)(b) vehicle due to a lane violation he observed while patrolling Shirley Chisholm State Park, a few blocks away from the incident location (BR 09). When § 87(2)(b) refused to identify himself and leave the vehicle when ordered to do so, Park PO Pitt requested NYPD to assist via radio. He had no further recollection of the incident. NYS Parks PO Pitt prepared New York State Incident Report § 87(2)(b) which was consistent with § 87(2)(b) continued non-compliance with both NYS Parks PO Pitt's and NYPD officers' orders during the vehicle stop and indicated no profanity by any officers (BR 10).

Sgt. Barhold did not recall issuing any profanity during the incident and denied telling § 87(2)(b)

§ 87(2)(b) that he was going to “beat [his] fucking ass.” § 87(2)(b) did not comply with multiple orders to exit his vehicle. He seemed irrationally excited and confrontational for the situation. § 87(2)(b) continuously yelled and moved his arms all around his torso. Sgt. Barhold did not know who § 87(2)(b) was or his criminal history, why he was irate and non-compliant, or what he might have in the car including possible weapons. He observed the key in the ignition and felt that the situation had to be resolved quickly for safety reasons. With the entrance to the Belt Parkway in the near vicinity, he did not want § 87(2)(b) to try and drive away and potentially drag an officer with him. When presented the above-referenced footage from 0:00 to 1:34, Sgt. Barhold attributed all profanity to himself and stated he issued that profanity due to the gravity of the aforementioned circumstances and to ensure § 87(2)(b) exited the vehicle as quickly as possible but from 1:34 to 2:01, Sgt. Barhold did not recognize the voice issuing profanity as the audio was muffled and all four officers were in immediate proximity of the camera.

PO Bergami recalled no profanity by officers other than while unsuccessfully trying to break § 87(2)(b) window with a life hammer, he stated to himself, “This thing doesn’t work for shit” (BR 12). When presented the above-referenced footage, PO Bergami could not identify the voice that issued profanity.

PO Macy and PO Costello recalled no profanity by officers (BR 13-14). When presented the above-referenced footage, both officers identified the voice as likely belonging to Sgt. Barhold until 1:55. From that point, PO Costello did not recognize the voice as there were too many voices and there was background noise, but PO Macy stated the voice issuing these additional profanities sounded like Sgt. Barhold but he did not recognize the voice that told § 87(2)(b) to give his “fucking hands.

Officers are committed to treating every citizen with compassion, courtesy, professionalism, and respect NYPD Patrol Guide Procedure 200-02 (BR 15). Discourteous language by an officer may also be justified when attempting to gain compliance with an order while attempting to maintain order during a stressful street encounter NYPD Disciplinary Case #79627/04 (BR 16).

Sgt. Barhold was identified by himself and fellow officers as using profanity and with consistent volume from his own BWC. The video evidence is consistent with both § 87(2)(b) and officers’ testimony that § 87(2)(b) refused multiple orders by officers to exit his vehicle and when he was being placed under arrest. The video evidence shows § 87(2)(b) demeanor to be excited and frantic. § 87(2)(g)

Allegation A is exonerated.

§ 87(2)(g) No BWC captured the additional alleged profanity, “I asked you to open the fucking door,” being uttered at any point during the incident. § 87(2)(g)

it is recommended that **Allegations B and C be unfounded.**

§ 87(2)(g) It is therefore recommended that **Allegation D** be closed as **officer unidentified.**

Allegation E – Abuse of Authority: In the vicinity of 501 Gateway Drive in Brooklyn, Sergeant Charles Barhold damaged § 87(2)(b) property.

Allegation F – Abuse of Authority: In the vicinity of 501 Gateway Drive in Brooklyn, Police Officer James Bergami damaged § 87(2)(b) property.

Footage from Sgt. Barhold's BWC depicts these allegations (BR 05). The durational timestamp will be referenced. At 0:00, Sgt. Barhold tells § 87(2)(b) that he is driving an unregistered car, tells him something is "fake," and then asks § 87(2)(b) to step out of the car. At 0:08, Sgt. Barhold tells § 87(2)(b) that officers are going to break his window if he does not step out of the car. He then says, "We're going to break it." At 0:12, Sgt. Barhold's camera jerks from right to left as he faces the front passenger-side window of § 87(2)(b) vehicle. Though this is not clearly depicted, it appears the Sgt. Barhold hit § 87(2)(b) window, possibly with an asp. Sgt. Barhold tells § 87(2)(b) to exit again. § 87(2)(b) response is inaudible and Sgt. Barhold states, "Yup, we're going to break your car." At 0:26, an officer asks § 87(2)(b) if he is going to open the door. § 87(2)(b) states, "You going to break my window, look, look, look." Sgt. Barhold also tells him to open it and that he is driving an unregistered car. He then taps on § 87(2)(b) window with an asp and states, "You are under arrest... for having a fake plate... Sir, step out of the car or we're going to break your window and we're going to pull you out. We are going to break your window and pull you out. That [documentation § 87(2)(b) displays though the window] is fake." At 0:47, Sgt. Barhold states again that officers are going to break § 87(2)(b) window. He collapses his asp on the ground and then hits § 87(2)(b) window with it and states again officers are going to break his window. At 0:52, Sgt. Barhold places the tip of his asp in a gap at the top of the front passenger-side window and moves it in a levering motion. The windows shatters and Sgt. Barhold hit a cracked portion of window at the bottom. He hits a shattered but rather intact bottom portion of the window and states, "Get the fuck out of the car now. Get the fuck out. Get out of the car." He proceeds to repeat for § 87(2)(b) to get out of the car multiple times. A glassy or metallic tapping/banging is heard but the source of this sound is not depicted. Sgt. Barhold reaches in and opens the door via the interior handle. § 87(2)(b) yells about his broken window. Sgt. Barhold continues to tell § 87(2)(b) to exit. At 1:23, Sgt. Barhold states, "It's unlocked, Jimmy, Jimmy, pull him out," as PO Bergami breaks the driver's side window.

Footage from PO Bergami's BWC also depicts these allegations (BR 06). The durational timestamp will be referenced. At 0:14, PO Bergami approaches the driver's door of § 87(2)(b) vehicle. At 0:32, § 87(2)(b) states, "You're breaking my window, you're breaking my window." PO Bergami asks if § 87(2)(b) is going to open the door and it sounds like PO Bergami attempts to open the door. Sgt. Barhold is on the other side of the vehicle as he continuously tells § 87(2)(b) to exit the vehicle or officers will break his window. At 0:55, Sgt. Barhold states again that officers are going to break § 87(2)(b) window and PO Bergami tells him to open the door. At 1:03, Sgt. Barhold breaks the front passenger window and continuously orders § 87(2)(b) out of the vehicle. At 1:07, PO Bergami repeatedly hits § 87(2)(b) driver's window with a life hammer. Sgt. Barhold repeatedly orders § 87(2)(b) out of the vehicle. At 1:12, PO Bergami states, "This thing don't work for shit" and Sgt. Barhold tells § 87(2)(b) to exit. At 1:30, as PO Bergami continues to hit the window, he realizes the tool is not working and takes out his asp. He shatters the window after two strikes and opens the door.

§ 87(2)(b) stated after NYPD officers arrived on scene, Sgt. Barhold tapped on the window with an asp or baton and told § 87(2)(b) to open the window multiple times or he would break it. § 87(2)(b) refused to open the window. PO Bergami told § 87(2)(b) to open the window and another officer told him to open the door. § 87(2)(b) refused multiple orders by officers to open the door and told them that he was not removing his hands from the steering wheel. § 87(2)(b) observed Sgt. Barhold hit his vehicle's front passenger window three to four times a conic object before the window shattered. Sgt. Barhold reached through the space where the window had been and opened the door with the interior handle. PO Bergami began hitting the driver's window with a blunt object. Sgt. Barhold told him to stop as the door was already opened but PO Bergami

continued until the window shattered. Officers proceeded to remove § 87(2)(b) from the vehicle.

NYS Parks PO Pitt provided vague testimony and only recalled general non-compliance from § 87(2)(b). He was presented the New York State Incident Report he prepared regarding this incident and could not elaborate. New York State Incident Report § 87(2)(b) documents that § 87(2)(b) refused to initially comply with NYS Parks PO Pitt in rolling his windows down and providing identification when stopped for crossing a double yellow line and suspicion of a fraudulent license plate before Park PO Pitt called for NYPD response at which point § 87(2)(b) continued to refuse to comply with lawful orders resulting in officers forcibly removing him from the vehicle by breaking both of his front side windows as instructed by Sgt. Barhold.

When Sgt. Barhold arrived on scene, he approached § 87(2)(b) passenger door and observed his rear license plate to be a clearly fraudulent New Jersey temporary tag as the font did not match the standard tall and thin font. At that time, § 87(2)(b) was under arrest for at least criminal possession of a forged instrument. Sgt. Barhold was not sure about the driver's window, but the passenger window was rolled down about an inch or two. § 87(2)(b) was irate and yelling statements that he did not recall. Sgt. Barhold knocked on the window and told § 87(2)(b) that he was under arrest because he had fraudulent plates. § 87(2)(b) continuously yelled and moved his arms all around his torso. Sgt. Barhold gave him multiple orders and warnings to voluntarily exit or officers would break the vehicle's windows and forcibly remove him from the vehicle. § 87(2)(b) never made any compliant behaviors or statements. He observed the key in the ignition and did not recall if the vehicle was on. Sgt. Barhold stated that he had been in multiple situations where a subject tried to flee in their vehicle where either an officer was dragged, or a police vehicle was struck. Sgt. Barhold took his asp and hit the window without breaking it. He then placed the baton inside the gap in the window and levered it downward, shattering the window. Sgt. Barhold reached through the window to unlock and open the front passenger door, keeping eyes on § 87(2)(b) and pressed unlock for all the doors. Sgt. Barhold yelled at officers that the doors were unlocked and to take § 87(2)(b) out. Due to § 87(2)(b) yelling and the background noise of traffic, other officers apparently did not hear, and PO Bergami broke the driver's window and opened the door. Sgt. Barhold did not recall directly observing PO Bergami break the window.

When PO Bergami arrived on scene, he stood by § 87(2)(b) driver side door. PO Bergami asked § 87(2)(b) to open the door and provide ID. § 87(2)(b) did not respond but yelled statements PO Bergami did not recall. PO Bergami explained that officers were going to break his windows if he did not exit. § 87(2)(b) continued yelling, stating, "Don't break my window." This was the only statement from § 87(2)(b) that PO Bergami recalled up to this point. PO Bergami did not recall any officers issue similar directives but was sure they did. When § 87(2)(b) continued to refuse to open the door, PO Bergami made the decision to break the window. PO Bergami grabbed his life hammer from his belt and hit the window approximately 15 times. The handle for the life hammer broke, he dropped it, and grabbed his asp to hit the window. After multiple hits, the window broke. PO Bergami stated that if § 87(2)(b) was saying anything, he could not hear him due to the noise caused by the banging. PO Bergami recalled hearing the front passenger window break as well but did not recall if it was before or after he broke the driver's window. PO Bergami opened the door and other officers removed § 87(2)(b).

PO Macy and PO Costello provided consistent testimony to Sgt. Barhold's and PO Bergami's, adding that they also issued multiple orders for § 87(2)(b) to provide documentation and exit the vehicle before and after other officers arrived, none of which § 87(2)(b) complied with.

Patrol Borough Brooklyn North Investigations Unit did not conduct a full investigation into the property damage allegations but noted that it was within department guidelines due to § 87(2)(b) repeated non-compliance.

Actions by officers were lawful when a motorist was pulled over after initially refusing to do so for three blocks and committed obstruction of governmental administration in the second degree by refusing to open his window after repeated requests by officers to do so, leading a supervisor to direct the breaking of one of that motorist's vehicle's windows People v. Senkitael,

936 N.Y.S.2d 60 2011 (BR 17). The courts have found that police officers can damage property only if doing so is reasonably necessary to carry out their duties Onderdonk v. State, 170 Misc. 2d 155 (1996) (BR 28).

§ 87(2)(b) and officers' testimony are consistent with video evidence portraying § 87(2)(b) refusing to cooperate with officers' orders. § 87(2)(g)

it is recommended that **Allegations E and F** be **exonerated**.

Allegation G – Discourtesy: In the vicinity of 501 Gateway Drive in Brooklyn, Sergeant Charles Barhold spoke discourteously to § 87(2)(b)

Footage from Sgt. Barhold's BWC depicts this allegation (BR 05). The durational timestamp will be referenced. Between 1:35 and 2:57, as § 87(2)(b) was removed from the vehicle and handcuffed, Sgt. Barhold told him, he is a "stupid piece of shit," a "fucking [inaudible]," "Fuck you, you piece of shit," a "piece of shit" again, "Shut the fuck up," "Get the fuck up," and to "shut the fuck up, you fucking..."

§ 87(2)(b) alleged that, after officers broke his window and as he was being arrested, Sgt. Barhold told him, "Shut the fuck up, stop kicking and screaming," and that either Sgt. Barhold or PO Bergami, he could not tell as both officers were above him on the ground and he could not see them, told him to, "Shut the fuck up."

NYS Parks PO Pitt recalled no profanity by officers during the incident.

Sgt. Barhold did not recall issuing any profanity during the incident and stated definitively that he did not call § 87(2)(b) a, "stupid piece of shit," or tell him, "Fuck you." When presented the above-referenced footage from 0:00 to 1:34, Sgt. Barhold did not recognize any voices that issued profanity until 2:55, identifying himself as telling § 87(2)(b) to, "Shut the fuck up, you fucking..." At this point, due to the gravity of dealing with a non-compliant motorist and that he was out of breath after a physical struggle, he used the words "fuck" and "fucking."

PO Bergami recalled no profanity by officers after § 87(2)(b) windows were broken. When presented the above-referenced footage, PO Bergami could not identify the voice that issued profanity.

PO Costello recalled no profanity by officers. When presented the above-referenced footage until 1:55, he stated it sounded like Sgt. Barhold issuing all the profanity. Regarding the profanity issued following 1:55, he did not recognize the voice as there were too many other voices and background noise.

PO Macy recalled no profanity by officers. When presented the above-referenced footage, PO Macy identified Sgt. Barhold as stating all the profanity under this allegation except for the first time he told § 87(2)(b) to "shut the fuck up," stating he did not recognize the voice.

Officers are committed to treating every citizen with compassion, courtesy, professionalism, and respect NYPD Patrol Guide Procedure 200-02. Discourteous language by an officer may also be justified when attempting to gain compliance with an order while attempting to maintain order during a stressful street encounter NYPD Disciplinary Case #79627/04.

Sgt. Barhold was identified by himself and fellow officers as using profanity and with loud, clear, and consistent volume from his own BWC. § 87(2)(g)

it is recommended that **Allegation G** be **substantiated**.

Allegation H – Force: In the vicinity of 501 Gateway Drive in Brooklyn, officers used physical force against § 87(2)(b)

Allegation I – Force: In the vicinity of 501 Gateway Drive in Brooklyn, Police Officer Brian Costello used physical force against § 87(2)(b)

Allegation J – Force: In the vicinity of 501 Gateway Drive in Brooklyn, Sergeant Charles Barhold used physical force against § 87(2)(b)

Allegation K – Force: In the vicinity of 501 Gateway Drive in Brooklyn, Police Officer James Bergami used physical force against § 87(2)(b)

Allegation L – Force: In the vicinity of 501 Gateway Drive in Brooklyn, Police Officer Craig Macy used physical force against § 87(2)(b)

Footage from Sgt. Barhold's BWC depicts these allegations (BR 05). The durational timestamp will be referenced. At 1:35, Sgt. Barhold walks up to the open driver's door where PO Costello leans in toward § 87(2)(b) and Sgt. Barhold appears to move him out of the way. Sgt. Barhold's camera starts shaking rapidly and any clear depiction of anything is compromised but it appears that Sgt. Barhold and perhaps other officers remove § 87(2)(b) from the vehicle onto his feet by holding his upper body. At 1:43, § 87(2)(b) asks multiple times why someone is punching him. Sgt. Barhold tells § 87(2)(b) to get down. Due to the rapid shaking of Sgt. Barhold's camera, events are not clearly depicted but it is apparent that Sgt. Barhold and other officers are at least grabbing § 87(2)(b) by his upper body. At 1:51, it seems that § 87(2)(b) is on the ground on his stomach with Sgt. Barhold and PO Bergami over him and PO Costello also on the ground to their right. These officers appear to be holding § 87(2)(b) on the ground and it is unclear if any are lying or placing any pressure on top of him. At 1:59, NYS Parks PO Pitt places his knee on § 87(2)(b) back and, despite the shaky camera, it appears he handcuffs § 87(2)(b) assisted by PO Bergami and PO Costello, as Sgt. Barhold holds the left side of § 87(2)(b) upper body. By 2:26, it appears that officers successfully handcuff § 87(2)(b).

Footage from PO Bergami's BWC also depicts these allegations (BR 06). The durational timestamp will be referenced depicts these events beginning at 1:37. At 1:52, PO Bergami moves toward § 87(2)(b) after Sgt. Barhold removes him from the vehicle and his camera becomes too obstructed by other persons to depict any physical events until 2:10, when it appears that PO Bergami and other officers are holding § 87(2)(b) arms behind his back on the ground. By 2:35, it appears that officers successfully handcuff § 87(2)(b).

Footage from PO Macy's BWC depicts these allegations (BR 04). The durational timestamp will be referenced PO Macy's body-worn camera is mostly obscured by his raincoat, but it appears at 19:44 that he kneels down to begin assisting in physically apprehending in some manner § 87(2)(b) after he is already taken down.

§ 87(2)(b) stated that PO Bergami broke the window, opened the driver side door, and pulled him out of the vehicle toward the rear. Sgt. Barhold came around from the passenger side of the vehicle on § 87(2)(b) right as NYS Parks PO Pitt stood to his left. Officers brought § 87(2)(b) hands down behind his back, held them together, and raised them toward his shoulder blades. § 87(2)(b) felt multiple sensations across his torso indicative of being punched but he did not observe any specific officer punching him. § 87(2)(b) observed an officer described as wearing a white shirt to his left punch him in the left side of his face multiple times. NYS Parks PO Pitt only held his left arm. § 87(2)(b) felt PO Bergami grab his torso and turn him away from the vehicle toward the ground. § 87(2)(b) landed on the ground on his stomach. § 87(2)(b) stated two officers fell with him, possibly NYS Parks PO Pitt and Sgt. Barhold. § 87(2)(b) alleged that PO Bergami placed one knee on his lower back and the other between his shoulder blades. PO Bergami secured handcuffs on him. § 87(2)(b) alleged that he suffered swelling behind his left ear and a ringing in his ear due to the physical force. He requested to go and was transported to the hospital by New York State Park Police officers.

NYS Parks PO Pitt did not recall how officers arrested § 87(2)(b) or his physical behavior during the arrest. He was presented the New York State Incident Report he prepared regarding this

incident and could not elaborate. New York State Incident Report § 87(2)(b) documents that § 87(2)(b) refused to comply with officers resulting in officers forcibly removing him from the vehicle by breaking both of his front side windows as instructed by Sgt. Barhold. No specific physical force was detailed. It detailed that § 87(2)(b) later complained of a sore neck, a sore right ear, and was transported by NYS Park Police officers to § 87(2)(b) Hospital. NYS Parks PO Pitt also prepared a handwritten Medical Treatment of Prisoner Report which was largely illegibly faded but also indicated § 87(2)(b) suffered shoulder pain and high blood pressure and included five photographs of § 87(2)(b) face and back which depicted no visible injuries (BR 20).

PO Costello stated that after the driver's door opened, he reached in to pull § 87(2)(b) out. He ordered § 87(2)(b) to remove his seatbelt but § 87(2)(b) held his hands upward so PO Costello reached across, unbuckled the seatbelt, and pulled § 87(2)(b) out by gripping his left leg and upper body by the left side of his shirt, likely his arm. § 87(2)(b) immediately went to ground on his stomach. He did not gain his footing when removed. Other than the seatbelt, PO Costello did not meet any other resistance from § 87(2)(b) but § 87(2)(b) did not voluntarily step out. PO Macy, PO Bergami, and Sgt. Barhold flanked PO Costello in an orientation he did not recall but they were not far behind him since they were not in the street due to traffic. PO Costello did not recall § 87(2)(b) standing by his vehicle during the arrest. PO Costello did not recall himself or any other officers punch § 87(2)(b). He did not observe any officer on top of § 87(2)(b) or place their knees on him.

Sgt. Barhold stated that he came around to the driver's door where he saw PO Costello and PO Bergami reaching in to take § 87(2)(b) out but § 87(2)(b) was leaning away from officers. He did not recall where PO Costello and PO Bergami were trying to grab him or if they did. Sgt. Barhold knew they were having trouble as § 87(2)(b) was still not out of the vehicle and yelling and moving his arms in various directions. § 87(2)(b) was never physically aggressive or violent. Sgt. Barhold moved past PO Costello, moving him out of the way, reached his arms in and grabbed § 87(2)(b) by the shoulders of his clothing and pulled him out of the vehicle. He did not recall what other officers assisted him in doing this, if any, or where they might have held him. § 87(2)(b) was placed against the vehicle at the rear driver's side passenger window and he kept his arms tensed and inward toward his body as he moved his body side-to-side as all four NYPD officers surrounded him and attempted to grab his arms and place them behind his back. Sgt. Barhold did not recall where he or other officers touched § 87(2)(b) on his person. He did not recall himself or any other officer punching § 87(2)(b) in his face and torso. Officers took § 87(2)(b) to the ground from where he stood next to the vehicle. Sgt. Barhold stated he did not recall any intentional or specific steps to take § 87(2)(b) down but assumed it was an intentional takedown as it is easier to control a resistant subject's arms when they are on the ground. All four officers assisted with the takedown and handcuffing. Sgt. Barhold did not recall how officers handcuffed § 87(2)(b) other than they grabbed his arms and placing them behind his back.

PO Bergami stated he moved away from the driver's door after breaking the window to allow PO Costello to open the driver's door and remove § 87(2)(b) seatbelt. PO Costello and another officer he did not recall grabbed his arms and pulled him out. § 87(2)(b) was kicking his legs around in apparent resistance. PO Bergami did not recall how else § 87(2)(b) resisted. PO Costello and the other officer pulled him into a standing position and backed up into PO Bergami. PO Bergami grabbed one of § 87(2)(b) arms to hold it behind his back so that he could be handcuffed. PO Bergami and the other officers placed him on the ground secured handcuffs on him. During that time, due to § 87(2)(b) kicking, PO Bergami held at least one of his legs on the ground but stated multiple officers went to ground with § 87(2)(b) and could not speak to any specific actions they took with § 87(2)(b). He did not recall any kicks landing on any officers or who secured the handcuffs. No officer punched his torso, face, or head.

PO Macy stated he came to the driver's door as PO Bergami broke the window and opened the door. PO Bergami reached in to pull out § 87(2)(b). PO Macy did not initially assist PO Bergami, but PO Costello and Sgt. Barhold were both at the driver's door also pulling § 87(2)(b).

out. As officers placed § 87(2)(b) directly on the ground, PO Macy grabbed one of his arms to assist. All four officers grabbed § 87(2)(b) and assisted in taking him from a seated position directly to the ground. PO Macy did not recall § 87(2)(b) placed against the vehicle by officers. PO Macy never punched § 87(2)(b) and never observed other officers do so. On the ground, officers rear handcuffed him. PO Macy did not recall who secured the cuffs. He held § 87(2)(b) hands and/or feet during the cuffing as he was kicking out his legs and moving his body in various directions to resist. PO Macy stated all officers assisted and could not speak to any specific actions by other officers.

§ 87(2)(b) arrest photograph pertaining to this incident depicts no visible injuries (BR 27).

Medical records from § 87(2)(b) record no visible injuries by § 87(2)(b) other than a small abrasion to the middle of his back (BR 21).

Patrol Borough Brooklyn North Investigations Unit exonerated all physical force due to § 87(2)(b) repeated non-compliance and resistance and found no evidence that any officer struck him.

In determining a reasonable use of force, officers must consider factors including severity of the circumstance, subject's actions, duration of the action, immediacy of the perceived threat or harm to any party, subject's active resistance, subject's attempt of flight to evade arrest, number of subjects and MOS, subject's physical stature, any known violent history, presence of a hostile crowd, and any substance use by the subject at the time NYPD Patrol Guide Procedure 221-01 (BR 25).

§ 87(2)(b) was the only party to allege that he was punched, and the video evidence is unable to corroborate or unfound that allegation due to its lack of comprehensiveness. § 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **officers unidentified**.

§ 87(2)(g)

it is recommended that **Allegations I to L** be exonerated.

Allegation M – Offensive Language: In the vicinity of 501 Gateway Drive in Brooklyn, Sergeant Charles Barhold made remarks to § 87(2)(b) based upon gender.

Allegation N – Offensive Language: In the vicinity of 501 Gateway Drive in Brooklyn, an officer made remarks to § 87(2)(b) based upon race.

The available video evidence covers the entirety of § 87(2)(b) removal from his vehicle to his placement in a police vehicle (BR 02-07). No officer is heard stating the words “pussy” or “nigger.”

§ 87(2)(b) stated that while he was being handcuffed by officers on the ground, Sgt. Barhold told him, “You crying now, you pussy?” and that a voice above his head on the ground, either Sgt. Barhold or PO Bergami as they were both above him, called him a “nigger.”

NYS Parks PO Pitt did not recall any officer stating “pussy” or “nigger.”

Sgt. Barhold, PO Bergami, PO Macy, and PO Costello did not recall any officer call § 87(2)(b) a “pussy” or a “nigger,” with Sgt. Barhold stating definitive he never called § 87(2)(b) a “nigger.” and stated he definitely did not call him a “nigger.”

§ 87(2)(g) it is

recommended that **Allegations M and N** be **unfounded**.

Allegation O – Offensive Language: In the vicinity of 501 Gateway Drive in Brooklyn, Sergeant Charles Barhold made remarks to § 87(2)(b) based upon a mental disability.

Footage from Sgt. Barhold's BWC depicts this allegation (BR 05). The durational timestamp will be referenced. At 2:55, after § 87(2)(b) is handcuffed and is continuously yelling, Sgt. Barhold goes to the front passenger seat to inspect it and calls § 87(2)(b) a "retard."

§ 87(2)(b) did not allege this allegation in his verified statement.

NYS Parks PO Pitt did not recall any officer call § 87(2)(b) a "retard."

Sgt. Barhold did not recall § 87(2)(b) a "retard." When presented the above-referenced footage, he identified himself as using the word "retard" and stated he had no reason to do so. He did not know and could not say who he was speaking to. He did not know where § 87(2)(b) was when he said it or how close he was.

Officers are prohibited from making disrespectful remarks to an individual concerning a disability Patrol Guide Procedure 203-10 (BR 19).

Though Sgt. Barhold could not confirm whom he called a "retard," the video evidence appears to show that he directed this toward § 87(2)(b) § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation O** be **substantiated**.

Allegation O – Offensive Language: At the 75th Precinct stationhouse, Police Officer Craig Macy made remarks to § 87(2)(b) based upon gender.

Allegation P – Discourtesy: At the 75th Precinct stationhouse, Police Officer Craig Macy spoke discourteously to § 87(2)(b)

Footage from PO Macy's BWC depicts these allegations (BR 07). The durational timestamp will be referenced. At 0:36, as officers bring § 87(2)(b) to the front desk of the stationhouse to process his arrest, PO Macy asks § 87(2)(b) "Oh, now you're crying? Stop." At 2:06, as another officer attempts to ascertain § 87(2)(b) information, PO Macy tells him, "Stop the waterworks. I'm wet enough, I don't need your tears."

§ 87(2)(b) alleged that while he was processed at the front desk, PO Macy told him, "Stop being a pussy now. You're crying for what? Shut the fuck up."

NYS Parks PO Pitt did not recall any statements by officers at the stationhouse.

PO Macy did not recall any officer call § 87(2)(b) a "pussy" or use the word "fuck."

§ 87(2)(g) It is therefore recommended that **Allegations O and P** be **unfounded**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been party (BR 22).
- Sgt. Barhold has been a member of service for 12 years and has been subject of 23 other allegations in six other CCRB complaints with no substantiations (see officer history):
 - 201909997 involves allegations of business card refusals, interfering with recording, search of person, stop, threat of arrest, vehicle search, and discourteous language, 201910276 involves allegations of a vehicle search and a discourteous word, 201910821 involves allegations of business car refusals, frisks, shield number refusal, vehicle stop, vehicle search, and discourteous language, and 20203451 involves a stop allegation and are all pending investigation.

- § 87(2)(g) [REDACTED]
- PO Bergami has been a member of service for 15 years and has been subject of 10 other allegations in five other CCRB complaints with no substantiations (see officer history):
 - § 87(2)(g) [REDACTED]
- PO Costello has been a member of service for nine years and has been subject of 10 other allegations in five other CCRB complaints with no substantiations (see officer history):
 - 201910645 involves allegations of discourteous and offensive language and 202002663 involves an allegation of a threat of arrest, both of which are pending investigation.
 - § 87(2)(g) [REDACTED]
- PO Macy has been a member of service for 18 years and has been subject of 23 other allegations in nine other CCRB complaints with no substantiations (see officer history):
 - § 87(2)(g) [REDACTED]

Mediation, Civil and Criminal Histories

- This complaint was deemed unsuitable for mediation due to § 87(2)(b) [REDACTED] arrest.
- On February 2, 2021, the Office of the New York City Comptroller emailed negative results for any Notices of Claim regarding this incident (BR 23).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad No.: 11

Investigator: <u>Benjamin Shelton</u>	Inv. Benjamin Shelton	10/15/21
Signature	Print Title & Name	Date

Squad Leader: <u>Edwin Pena</u>	IM Edwin Pena	10/15/21
Signature	Print Title & Name	Date

Reviewer: _____	_____	_____
Signature	Print Title & Name	Date